

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-23  
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SAMSUNG ELECTRONICS  
AMERICA, INC.,  
COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,  
LTD. ,

RESPONDENT.

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**AMENDED JOINT MOTION FOR EXTENSION OF TIME**  
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Complainant, Samsung Electronics America, Inc. (“SEA”), and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”), through their undersigned counsel, respectfully submit this Amended Joint Motion for Extension of Time and proposed revised procedural schedule (“Amended Motion”).

The Parties submit this Motion on the first day of the reopening of the Federal Maritime Commission following the lengthy government shutdown that affected administrative agencies in Washington, D.C., and the work of the Commission. The Parties submit this Amended Motion to report on their efforts to complete document reviews and productions as well as their collaborative engagement in the resolution of discovery issues and disputes during the past six weeks.

Currently, the discovery phase is scheduled to end on November 14, 2025 (*see* Amended Scheduling Order, Dkt. 34). On September 29, 2025, immediately before the government shutdown, the Parties filed a Joint Motion for Extension of Time (Dkt No. 36, “Joint Motion”) which proposed a revised schedule for the completion of fact and expert discovery. The government shutdown prevented a ruling on the Joint Motion; nevertheless, the Parties continued to assiduously move forward with discovery, as described below. In light of this progress and challenges encountered during same, the Parties now seek to substitute this Amended Motion for the Joint Motion of September 29, 2025 (Dkt. No. 36).

The Parties respectfully seek an Order extending the discovery deadline from November 14, 2025 to June 23, 2026, to allow the Parties to complete discovery, specifically to accommodate separate timeframes for fact witness depositions and the preparation of certified translations of Korean documents to be used at those depositions; to allow time for the Parties’ experts to complete their review and evaluation of the documents and data generated during fact discovery and to reset the subsequent case deadlines within the Presiding Officer’s Amended Scheduling Order.

This Joint Motion is filed in compliance with 46 C.F.R. § 502.102, which allows motions for enlargement of time to “be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” The Parties respectfully submit this Amended Motion after having met and conferred on September 24, 2025, and on November 11, 2025, and with numerous emails and letters in between those formal meetings, along with subsequent emails and work, as required by 46 C.F.R. § 502.71. The Parties respectfully submit that good cause exists for granting the requested enlargement of time.

**A. Document Production is Substantial and Ongoing and Requires Careful Analysis**

On September 5, 2025, pursuant to the Amended Scheduling Order, the Parties submitted a Joint Status Report outlining their discovery progress, including the production and review of documents as well as their preparations for depositions. SEA submitted that it substantially completed its document production on July 9, 2025, but would use the additional time to further review for responsive documents. As of July 9, 2025, SEA had produced 553,876 documents, consisting of 2,872,885 pages. SEA made its final document production of 53,704 documents on September 12, 2025, bringing the total documents produced by SEA to 607,580 and a total of 3,222,305 pages. HMM disclosed in the Joint Status Report that it had produced 494,132 pages at that time, but anticipated making another, sizeable production before the September 12th deadline. HMM subsequently made another document production of 24,462 documents on September 10, 2025, and 3 documents on September 11, 2025. Since September 29, 2025, HMM made two additional productions on November 3, 2025 and November 11, 2025, totaling 10,116 documents comprising 53,446 pages. HMM's total production to date consists of 97,581 documents, for a total of 688,737 pages.

The Parties address the scope of documents because, with claims over a period of three years and over 96,000 charges at issue, extraordinary efforts were required in order to complete these productions by the deadlines imposed in the Amended Scheduling Order. The efforts to ensure collection and production of documents domestically, and for HMM, internationally, as well, required lawyers and eDiscovery professionals to work together at a breakneck pace to meet the deadlines. But the collection and production of documents did not end the process, and discovery remains ongoing.

In addition to making the productions discussed above, the Parties spent time reviewing the documents and materials that were produced. In connection with this work, the Parties were

able to identify information that was missing from the productions; and, following the exchange of deficiency letters and meetings to discuss same, discussed the relevancy and burden concerns in connection with objections to discovery, in an attempt to resolve those concerns.

As a result of these discussions, additional categories of information and an additional eight HMM custodians have been identified. HMM has searched for this additional data, which is estimated to be approximately 5 TB in size. When this process is completed, it will be transmitted to counsel for analysis, review and production.

As noted, the Parties have been largely successful in working out these issues, but mindful that with millions of pages of documents produced to date, and the need to produce additional documents from additional custodians that have been recently identified, turning right to the taking of depositions poses a real challenge for which the Parties seek relief and the Presiding Officer's indulgence. In addition, numerous documents which have been and will be produced are entirely or partially in Korean. Despite collaborative efforts to simplify and expedite translation through the use of AI rather than manual translations, translation remains highly burdensome. For further context, SEA submits its completed initial, AI-assisted translation of thousands of documents in HMM's production from Korean to English to prepare them for review by counsel and it is a time consuming and imprecise endeavor just to determine if a document is relevant to the dispute.

Because of this, the Parties seek additional time to complete the production of documents that were identified following the exchange of deficiency letters and responses, and a further document assessment period in preparation for depositions. This will allow the parties to address the issues raised in this subsection as addressed below. In addition, the parties have discussed the use of a deposition protocol that will help avoid translation and other issues during depositions in

light of the considerable number of documents in Korean, as well as providing a roadmap for the conduct of the fact depositions anticipated to be taken.

### **B. The Parties Are Working Together Towards Addressing Discovery Queries**

As stated in the Parties' Joint Status Report, the Parties have been working diligently to address the documents and materials contained in nearly four million pages of documents produced to date. During these last six weeks, the Parties have continued to exchange correspondence regarding document production and have met and conferred to collaboratively address the issues raised. The Parties have intentionally left the specific details concerning the scope of issues outside of this joint submission in an effort to be able to submit a motion jointly and, because the Presiding Officer's time is valuable, we endeavor to avoid raising issues that could be, and have been, narrowed or resolved. That said, in order to fully resolve these issues, substantial additional time is required for the Parties to exchange additional materials in discovery in hopes of avoiding motions practice.

On September 24, 2025, and November 11, 2025, which followed the exchange of detailed letters, counsel for the Parties participated in a meet and confer to address how these discovery issues can be resolved, while still digesting a large scale of documents and materials, and preparing for depositions of fact witnesses, along with expert work that is currently contemplated to occur. When addressing the circumstances, it became apparent that the Parties needed to seek assistance from the Presiding Officer in revisiting deadlines in light of the voluminous document record in this case and the work necessary to address the allegations raised in the pleadings.

### **C. Fact and Expert Witness Discovery Should Be Conducted Sequentially**

As currently constituted, the Parties are supposed to be taking depositions of over twenty fact witnesses while simultaneously reviewing sizeable volumes of material produced at the end

of the written discovery period. At the same time, counsel must digest that information and synthesize it for at least four experts in order for the experts to prepare their reports and rebuttals, and then take those experts' depositions. The Parties have assessed the working days during this period, and have concluded that it is impossible to undertake the careful work needed on this fact intensive record. In light of this, the Parties respectfully submit a schedule that accounts for the work needed during the fact deposition and expert discovery phases.

The Parties respectfully propose that fact witness depositions be scheduled following the end of the document review period requested below. Should that relief be granted, following the completion of fact witness depositions on March 31, 2026, expert discovery would commence. The Parties propose that, during the expert discovery phase, a period of 30 days be allowed for the experts to complete their review of depositions concluded toward the end of the Fact Discovery period, confer with counsel as needed and issue their respective reports. The Parties realize key witnesses may not be deposed until the end of the discovery process, let alone the corporate designation witnesses, and information from those depositions will form the bases of expert opinions. The proposed amendment to the schedule will allow the Parties to efficiently schedule and take the fact witness depositions, permit the Parties' experts to review depositions conducted and documents produced by both Parties, and prepare and exchange initial reports.

#### **D. Proposed Amended Scheduling Order**

The Parties have endeavored to present a more fulsome review of the phases of work based on the substantial documents and data exchanged between them. The Parties believe that, given the magnitude of the claims and evidence in this case, separating the fact and expert discovery phases as outlined above is reasonable, and a more appropriate way to advance this matter without prejudicing either Party's ability to meaningfully review the evidence, prepare for and take fact

witness depositions, and present the experts with relevant evidence to allow them to prepare and defend their materials. Based on the good cause shown above, the Parties respectfully request the extension and resetting of the deadlines as follows:

| <b>Event</b>                                                                                                     | <b>Current Deadline</b> | <b>Requested Deadline</b>                                         |
|------------------------------------------------------------------------------------------------------------------|-------------------------|-------------------------------------------------------------------|
| Continued Document Production Period / Addressing of Party Discovery Challenges / Preparation for Fact Witnesses | September 12, 2025      | January 16, 2026                                                  |
| Fact Discovery Phase Begins                                                                                      |                         | January 16, 2026                                                  |
| Complete Fact Depositions/Begin Expert Phase                                                                     |                         | March 31, 2026                                                    |
| Expert Reports Due                                                                                               |                         | May 1, 2026                                                       |
| Rebuttal Expert Reports Due/Expert Depositions Begin                                                             |                         | June 1, 2026                                                      |
| Expert Depositions Begin                                                                                         |                         | June 1, 2026                                                      |
| Complete Expert Discovery                                                                                        |                         | June 23, 2026                                                     |
| Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged      | December 3, 2025        | June 30, 2026                                                     |
| Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due               | December 31, 2025       | August 15, 2026                                                   |
| Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM                     | January 6, 2025         | [To be determined with the availability of the Presiding Officer] |

The Parties welcome the opportunity to address their diligent work during the government shutdown, the proposed amended schedule, and the circumstances which give rise to this application at a conference call, should the Presiding Officer have questions or otherwise believe

that a conference would be useful. Based on the good cause shown above, the Parties pray for an Order extending the current discovery deadline and resetting the deadlines in this case as outlined above.

Respectfully Submitted,

Dated: November 13, 2025

**HOLLAND AND KNIGHT LLP**

By: /s/ Christopher R. Nolan

Christopher R. Nolan  
Marisa Marinelli  
31 West 52<sup>nd</sup> Street  
New York, NY 10019  
Telephone: (212) 513-3200  
chris.nolan@hklaw.com  
marisa.marinelli@hklaw.com

Gerald A. Morrissey III  
Kristine O. Little  
Ashleigh T. Higgs  
800 17th Street N.W., Suite 1100  
Washington, D.C. 20006  
Telephone: (202) 469-5497  
Telephone: (202) 469-5549  
Telephone: (202) 469-5683  
gerald.morrissey@hklaw.com  
kristine.little@hklaw.com  
ashleigh.higgs@hklaw.com

*Counsel to Complainant Samsung Electronics America, Inc.*

**COZEN O'CONNOR**

By: /s/ Neil Quartaro  
Neil Quartaro, Esq.  
Joshua P. Stein, Esq.  
Christopher Raleigh, Esq.  
Kathryn Sobotta, Esq.  
175 Greenwich Street, 55th Floor  
3 WTC  
New York, NY 10007  
NQuartaro@cozen.com  
JStein@cozen.com  
KSobotta@cozen.com

*Counsel to HMM Co., Ltd. f/k/a Hyundai Merchant Marine Co., Ltd.*  
LEGAL\81448809\1